

THE CONSTITUTION (SIXTY-SECOND AMENDMENT) ACT, 1989

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Constitution and Amendments

THE CONSTITUTION (SIXTY-SECOND AMENDMENT) ACT, 1989

India

THE CONSTITUTION (SIXTY-SECOND AMENDMENT) ACT, 1989

Act 062 of 1989

Published in Gazette of India on 16 December 1989

Commenced on 25 January 1990

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[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Sixty-second Amendment) Bill, 1989 (Bill No. XXVI of 1989) which was enacted as THE CONSTITUTION (Sixty-second Amendment) Act, 1989

STATEMENT OF OBJECTS AND REASONS

Article 334 of the Constitution lays down that the provisions of the Constitution relating to the reservation of seats for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indian community by nomination in the Lok Sabha and in the Legislative Assemblies of the States shall cease to have effect on the expiration of a period of forty years from the commencement of the Constitution. Although the Scheduled Castes and the Scheduled Tribes have made some progress in the last forty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of members, have not ceased to exist. It is, therefore, proposed to continue the reservation for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indians by nomination for a further period of ten years.

2.

The Bill seeks to achieve the above object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Fortieth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Constitution (Sixty-second Amendment) Act, 1989.

(2)

It shall be deemed to have come into force on the date_676 on which the Bill for this Act is introduced in the Council of States.

2. Amendment of article 334.-In article 334 of the Constitution, for the words "forty years", the words "fifty years" shall be substituted.

[The Constitution (Sixty-second Amendment) Act, 1989, extended the period of reservation of seats for the Scheduled Castes and Scheduled Tribes and representation of the Anglo-Indians in the Lok Sabha and the State Legislative Assemblies for another ten years, i.e. up to 26 January 2000. Article 334 of the Constitution had originally required the reservation of seats to cease in 1960, but this was extended to 1970 by the 8th Amendment. The period of reservation was extended to 1980 and 1990 by the 23rd and 45th Amendments respectively. This Amendment extended the period of reservation to 2000. The period of reservation was further extended to 2010, 2020 and 2030 by the 79th and 95th and 104th Amendments respectively.

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